

MUTUAL NONDISCLOSURE AGREEMENT

This Agreement is entered into by and between Apex Dynamics Corp. (Disclosing Party) and Zenith AI Labs LLC (Receiving Party).

1. **SCOPE OF CONFIDENTIAL INFORMATION.** Confidential Information encompasses all non-public technical and financial data disclosed by either party, provided it is marked confidential or reasonably understood as confidential.

2. **EXCLUSIONS FROM CONFIDENTIALITY.** Confidential Information does not include information that is publicly known, already in the recipient's rightful possession without restriction, or independently developed without reference to the Disclosing Party's data.

3. **STANDARD OF CARE.** Each party shall protect the other's Confidential Information with the same degree of care it uses for its own confidential assets, but not less than reasonable care.

4. **COMPELLED DISCLOSURE.** If Receiving Party is required by valid court order or subpoena to disclose Confidential Information, it shall provide prompt written notice to Disclosing Party to enable protective orders.

5. **TERM AND SURVIVAL.** This Agreement remains in effect for two (2) years, and nondisclosure obligations survive for three (3) years following termination, except trade secrets which survive indefinitely.

6. **REMEDIES AND INJUNCTIVE RELIEF.** Unauthorized disclosure causes irreparable harm for which monetary damages are inadequate, entitling Disclosing Party to seek immediate injunctive relief without posting bond.

7. **GOVERNING LAW AND VENUE.** This Agreement is governed by Delaware law, and all disputes must be brought exclusively in the state or federal courts located in New Castle County, Delaware.